(d) Awards pursuant to claims comprehended under paragraphs (a), (b), and (c) of this section will be governed by the provisions of the Veterans Regulation No. 2 series, (38 U. S. C. ch. 12), effective laws and, as to disability compensation, § 3.212 relating to the effective dates of awards based upon original claims.

(e) Decisions of adjudicating agencies of original jurisdiction do not become final until the expiration of the time within which an appeal may be filed, or, if an appeal is timely filed, the disallowance does not become final prior to the appellate decision. Evidence received prior to the expiration of the appeal period or prior to the appellate decision will be considered by the adjudicating agency of original jurisdiction and will be considered as having been filed in connection with the claim which was pending at the beginning of the appeal period.

* * * * *

3. Sections 3.330 and 3.333 are revised to read as follows:

§ 3.330 *Finality of decisions.* A decision of an agency of original jurisdiction which is unappealed within 1 year from the date of notice of the disallowance shall be final. Where an appeal is timely filed, the disallowance, if affirmed, does not become final until the date of the appellate decision. (Vet. Reg. 2 (a), as amended; 38 U. S. C. ch. 12)

§ 3.333 *Submission of additional evidence within the appeal period or prior to appellate decision.* Additional material and pertinent evidence submitted within the appeal period or, if an appeal has been timely filed, submitted prior to an appellate decision will be considered by the agency of original jurisdiction and will be considered as having been filed in connection with the claim which was pending at the beginning of the appeal period. The submission of additional evidence will not extend the period in which an appeal may be taken. The appeal period in any event begins to run as of the date of notice of the initial decision. (Vet. Reg. 2 (a), as amended; 38 U. S. C. ch. 12)

4. In § 4.0 of Part 4, a new paragraph (a) (3) is added as follows:

§ 4.0 *Application for death benefits—(a) General.* * * *

(3) When the claim of a widow is disallowed, including disallowance for failure to furnish evidence, and evidence adequate to establish entitlement of a child or children who were included in the widow's claim is furnished within 1 year from the date of request (requested either prior or subsequent to the disallowance of the widow's claim), the award for the child or children will be made as if the disallowed claim had been filed solely on their behalf; otherwise, payments may not be made for the child or children for any period prior to the date of receipt of a new claim (formal or informal).

* * * * *

(Sec. 5, 43 Stat. 608, as amended, sec. 2, 46 Stat. 1016, sec. 7, 48 Stat. 9; 38 U. S. C. 11a, 426, 707)

This regulation is effective April 12, 1955.

[SEAL] J. C. PALMER,
Assistant Deputy Administrator.

[F. R. Doc. 55-3013; Filed, Apr. 11, 1955; 8:55 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1113]

ALASKA

RESERVING CERTAIN LANDS FOR USE OF THE DEPARTMENT OF THE ARMY AS A DOCK AND WAREHOUSE SITE; PARTIALLY REVOKING EXECUTIVE ORDER NO. 1919½ OF APRIL 21, 1914, AS AMENDED, AND PUBLIC LAND ORDER NO. 396 OF AUGUST 19, 1947, AND REVOKING PUBLIC LAND ORDER NO. 668 OF AUGUST 29, 1950

By virtue of the authority vested in the President by the act of March 12, 1914 (38 Stat. 305, 307; 48 U. S. C. 304) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described tract of land at Whittier, Alaska, a portion of which lies below the line of ordinary high tide on Passage Canal, is hereby reserved for the use of the Department of the Army as a dock and warehouse site:

Beginning at a point which bears S. 88° 39′ W., 200 feet from the most southerly corner of Parcel No. 7 of Public Land Order No. 587 as withdrawn on 23 May 1949; thence N. 88° 39′ E., 200 feet to said most southerly corner of Parcel No. 7; thence N. 34° 21′ W., 77.20 feet to the most westerly corner of Parcel No. 7; thence N. 55° 39′ E., along the northwest line of Parcel No. 7 a distance of 1,746.18 feet to a point on said northwest line which is S. 55° 39′ W., 25.95 feet from the most northerly corner of Parcel No. 7. Thence S. 70° 09′ W., 1,846.96 feet to a point; thence N. 60° 51′ W., 300 feet to a point; thence S. 56° 09′ W., 525 feet more or less to a point on the south line of the West Camp access road; thence in a southeasterly direction along the south line of said access road 885 feet more or less to the point of beginning.

The tract described contains approximately 15.93 acres.

Executive Order No. 1919½ of April 21, 1914, as amended by Public Land Order No. 219 of March 28, 1944, reserving lands for townsite purposes, and Public Land Order No. 396 of August 19, 1947, modifying Executive Order No. 1919½ to reserve portions of the withdrawn lands for use of the Alaska Railroad, are hereby revoked so far as they affect any of the above-described lands. Public Land Order No. 668 of August 29, 1950 reserving portions of the lands above-described for use of the Alaska Railroad is hereby revoked.

APRIL 5, 1955.

[SEAL] ORME LEWIS,
Assistant Secretary of the Interior.

[F. R. Doc. 55-2935; Filed, Apr. 11, 1955; 8:45 a. m.]

TITLE 46—SHIPPING

Chapter I—Coast Guard, Department of the Treasury

Subchapter E—Load Lines

[CGFR 55-15]

PART 43—FOREIGN OR COASTWISE VOYAGE

PART 45—MERCHANT VESSELS WHEN ENGAGED IN A VOYAGE ON THE GREAT LAKES

FEES FOR ASSIGNMENT OF LOAD LINES

A notice regarding proposed changes in the navigation and vessel inspection rules and regulations was published in the FEDERAL REGISTER dated February 18, 1955 (20 F. R. 1055 to 1057), as Items I to IX, inclusive, on the Agenda to be considered by the Merchant Marine Council, and a public hearing was held on March 22, 1955, at Washington, D. C. This document is the first of a series of documents covering the rules and regulations considered at this public hearing.

All the comments, views, and data submitted in connection with the items considered by the Merchant Marine Council at this public hearing have been very helpful to the Coast Guard and are very much appreciated.

The amendments to 46 CFR 43.40–5 and 45.20–75 revised the fees charged for (a) the assignment and renewal of load line certificates; (b) load line inspections; and (c) surveys. The fees prescribed may be charged by the assigning authorities approved by the Commandant, U. S. Coast Guard, to assist in the administration of the Load Line Act of March 2, 1929, as amended, and the Coastwise Load Line Act of 1935, as amended (46 U. S. C. 85–88i). This is the first increase in the scale of fees since 1936 and is in line with present day economic conditions. This document contains the amendments based on Item VIII of the Agenda considered by the Merchant Marine Council. No objections or comments were received from the public on this item.

By virtue of the authority vested in me as Commandant, United States Coast Guard, by Treasury Department Order No. 120, dated July 31, 1950 (15 F. R. 6521), to promulgate regulations in accordance with the statutes cited with the regulations below, the following amendments to the regulations are prescribed which shall become effective thirty days after the date of publication of this document in the FEDERAL REGISTER:

1. Section 43.40–5, including Table 43.40–5 (a), is amended to read as follows:

§ 43.40–5 *Fees, travel expense—(a) Scale of fees.* (1) Subject to the conditions as set forth in this paragraph, fees payable by owners will be charged for assignment of load line (including load line and condition survey, verification of markings and issuance of load line certificates) in accordance with Table 43.40–5 (a).